

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	20-07-2026 18:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	20-07-2026 18:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	105 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Bihar
विभाग का नाम/Department Name	Parliamentary Affairs Department Bihar
संगठन का नाम/Organisation Name	N/a
कार्यालय का नाम/Office Name	Bihar Legislative Assembly Secretariat
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :khyati.singh@aij.gov.in Buyer Email id: ramkumar.yadav1968@gov.in
कुल मात्रा/Total Quantity	7
वस्तु श्रेणी /Item Category	Toner Cartridges / Ink Cartridges / Consumables for Printers (Q2) (PAC Only)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	1 Lakh (s)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)	8 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
विगत प्रदर्शन /Past Performance	30 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Toner Cartridges / Ink Cartridges / Consumables for Printers
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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मध्यस्थता खंड के समावेश को मंजूरी देने वाले सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority approval for PAC

Competent Authority Approval document for PAC : [View Document](#)

सक्षम प्राधिकारी का नाम/Name of Competent Authority	poonam sinha
सक्षम प्राधिकारी का पद/Designation of Competent Authority	Secretary-in-charge, Bihar Vidhan Sabha, Patna
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	Bihar Legislative Assembly, Secretariat Patna
सीए अनुमोदन संख्या/CA Approval Number	Purchase-58/2021-96, Dated-09.07.2026
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	2026-07-09 00:00:00
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	Order granted by secretary-in-charge to create bid for purchase of sharp oem toner undr pac buying.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
6. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity

during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

7. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

8. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 30% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

Toner Cartridges / Ink Cartridges / Consumables For Printers (3 pieces) (Under PAC)

Make	sharp
Model	sharptoner-yellowcolorbp-at70ya

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Product Class of Cartridge	OEM
	Printer/Multifunction Machines Brand for which offered Cartridge/Consumable is Suitable	SHARP
	Type of Cartridge/Consumable	Toner Cartridge
	Color of the Ink/Toner	Yellow
	Model Number of OEM's Printer/OEM's Multi Function Machine	BP-50C26, BP-50C26T, BP-50C31, BP-50C31T, BP-50C36, BP-50C45, BP-50C55, BP-70C45, BP-70C65
	Model Number of OEM's Printer Cartridge/Consumable	BP-AT70YA
	Minimum Yield of the Replacement Cartridge/Consumable offered (Number of Pages)	15001 to 20000, 20001 to 30000, 30001 to 40000, 40001 to 50000, 50001 to 70000, 70001 to 100000, 100001 to 500000, 500001 to 1000000, 1000001 to 1500000 Or higher

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jaykant Kumar Sinha	800015,Secretary, Bihar Legislative Assembly Secretariat Patna	3	15

Toner Cartridges / Ink Cartridges / Consumables For Printers (1 pieces) (Under PAC)

Make	sharp
Model	sharptoner-cyancolorbp-at70ca

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Product Class of Cartridge	OEM
	Printer/Multifunction Machines Brand for which offered Cartridge/Consumable is Suitable	SHARP
	Type of Cartridge/Consumable	Toner Cartridge
	Color of the Ink/Toner	Cyan
	Model Number of OEM's Printer/OEM's Multi Function Machine	BP-50C26, BP-50C26T, BP-50C31T, BP-50C36, BP- 50C45, BP-50C55, BP-70C45, BP-70C65
	Model Number of OEM's Printer Cartridge/Consumable	BP-AT70CA
	Minimum Yield of the Replacement Cartridge/Consumable offered (Number of Pages)	15001 to 20000, 20001 to 30000, 30001 to 40000, 40001 to 50000, 50001 to 70000, 70001 to 100000, 100001 to 500000, 500001 to 1000000, 1000001 to 1500000 Or higher

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
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क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jaykant Kumar Sinha	800015,Secretary, Bihar Legislative Assembly Secretariat Patna	1	15

Toner Cartridges / Ink Cartridges / Consumables For Printers (1 pieces) (Under PAC)

Make	sharp
Model	sharptoner-magentacolorbp-at70ma

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Product Class of Cartridge	OEM
	Printer/Multifunction Machines Brand for which offered Cartridge/Consumable is Suitable	SHARP
	Type of Cartridge/Consumable	Toner Cartridge
	Color of the Ink/Toner	Magenta
	Model Number of OEM's Printer/OEM's Multi Function Machine	BP-50C26, BP-50C26T, BP-50C31, BP-50C31T, BP-50C36, BP-50C45, BP-50C55, BP-70C45, BP-70C65
	Model Number of OEM's Printer Cartridge/Consumable	BP-AT70MA
	Minimum Yield of the Replacement Cartridge/Consumable offered (Number of Pages)	15001 to 20000, 20001 to 30000, 30001 to 40000, 40001 to 50000, 50001 to 70000, 70001 to 100000, 100001 to 500000, 500001 to 1000000, 1000001 to 1500000 Or higher

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
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क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jaykant Kumar Sinha	800015,Secretary, Bihar Legislative Assembly Secretariat Patna	1	15

Toner Cartridges / Ink Cartridges / Consumables For Printers (2 pieces) (Under PAC)

Make	sharp
Model	sharptoner-blackcolorbp-at70ba

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Product Class of Cartridge	OEM
	Printer/Multifunction Machines Brand for which offered Cartridge/Consumable is Suitable	SHARP
	Type of Cartridge/Consumable	Toner Cartridge
	Color of the Ink/Toner	Black
	Model Number of OEM's Printer/OEM's Multi Function Machine	BP-50C26, BP-50C26T, BP-50C31, BP-50C31T, BP- 50C36, BP-50C45, BP-50C55, BP-70C45, BP-70C65
	Model Number of OEM's Printer Cartridge/Consumable	BP-AT70BA
	Minimum Yield of the Replacement Cartridge/Consumable offered (Number of Pages)	30001 to 40000, 40001 to 50000, 50001 to 70000, 70001 to 100000, 100001 to 500000, 500001 to 1000000, 1000001 to 1500000 Or higher

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
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क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jaykant Kumar Sinha	800015,Secretary, Bihar Legislative Assembly Secretariat Patna	2	15

Special terms and conditions-Version:4 effective from 09-10-2025 for category Toner Cartridges / Ink Cartridges / Consumables for Printers

1. This category covers two classes of products — OEM Cartridges/Consumables and Compatible Cartridges/Consumables — to enable buyers to procure both original and compatible options in a transparent and competitive manner.
2. **Definitions:**
 - (a) *OEM Cartridge/Consumable* refers to a cartridge manufactured by a company that also manufactures printing machines such as printers, multifunction (all-in-one) devices, or plotter printers, and is intended for use with those machines.
 - (b) *Compatible Cartridge/Consumable* refers to a cartridge manufactured by an entity other than the OEM of the printing machine but designed to be compatible with, and functionally replace, the OEM cartridge.
3. The parameter “Product Class of Cartridge” has two values — OEM and Compatible. ‘OEM’ denotes a cartridge having a brand same as that of the printer, while ‘Compatible’ denotes a cartridge having a brand different from the printer(s) but compatible with the printer(s). Buyers can select only ‘OEM’ or only ‘Compatible’ or both ‘OEM’ and ‘Compatible’ (or ‘any value’) as per their requirement.
4. Printer OEMs authorised in this category and granted dashboard access shall upload catalogues under Product Class of Cartridge – OEM. Compatible OEMs shall upload catalogues under Product Class of Cartridge – Compatible strictly in accordance with their approved Vendor Assessment (VA) report.
5. Incorrect selection of product class or deviation from the approved VA report by the sellers may attract administrative action, including removal of catalogues, temporary suspension, or any other action deemed appropriate by GeM.
6. The parameter “Model Number of OEM Printer/MFP” shall indicate the printer or multifunction model for which the offered cartridge/consumable is suitable. Sellers shall ensure correct mapping of cartridges/consumables to printer models while creating catalogues.
7. Printer OEMs and Compatible OEMs shall have their respective model/part numbers included in the drop-down options prior to catalogue creation. Catalogues created using unapproved or incorrect model numbers may be removed and attract administrative action.
8. Compatible OEMs shall ensure that their model or part numbers do not resemble those of printer OEMs in any manner likely to mislead or confuse buyers.
9. Sellers requiring inclusion of new model/part numbers (against parameter “Model Number of OEM's Printer Cartridge/Consumable”) or the OEM's name (against the parameter “Name of the OEM/Compatible Manufacturer of Cartridge/Consumable Offered”) in drop-down options shall submit such requests to the GeM Helpdesk along with supporting documentation. Requests shall be processed by GeM based on verification of the vendor's eligibility and the applicable VA report.
10. The parameter “Name of the OEM/Compatible Manufacturer of Cartridge/Consumable Offered” shall indicate the name of either the printer OEM or the compatible OEM, as applicable. Sellers shall select their name only from the approved drop-down options available after completion of Vendor Assessment and inclusion through the Helpdesk process.
11. Buyers should select only one brand/make under the parameter: “Printer:: Multifunction Machines Brand for which offered Cartridge:: Consumable is Suitable.”
12. Buyers procuring only ‘OEM’ cartridges for multiple printer brands through bunched bids shall opt for item-wise evaluation and not total value-wise evaluation, so as to enable participation by resellers of individual brands. Bunching of only ‘OEM’ Cartridges and only ‘Compatible’ Cartridges can be resorted to only when evaluation is item-wise. In case the buyer selects both ‘OEM’ and ‘Compatible’ against ‘Product Class of Cartridge’ or alternatively chooses ‘any value’ against ‘Product Class of Cartridge’, then the bid evaluation method of either ‘Total Value-wise’ or ‘Item-wise’ can be opted for by the buyer as per his/her requirement and desired level of competition based on the availability of sellers.
13. By selecting “As per IS/ISO/IEC 19752:2017”, the seller confirms compliance with equivalent or relevant ISO standards such as ISO/IEC 24711 or ISO/IEC 29102, as applicable to the technology or

type of cartridge (Inkjet, Laser, Toner, or Ink).

14. Buyers procuring cartridges through bidding and selecting Product Class – only 'OEM' should follow the PAC procurement method after following the prescribed due process, and the PAC certificate duly signed by the competent authority shall be uploaded at the time of bid creation. GeM, however, does not prescribe PAC procurement on its own, and the decision to follow the PAC mode of procurement is the buyer's call. In case the buyer selects both 'OEM' and 'Compatible' against 'Product Class of Cartridge' or alternatively chooses 'any value' against 'Product Class of Cartridge', then such PAC may not be required in the bid.
15. The L-1 comparison buying method for Product Class – only 'OEM' is not permissible. In case the buyer selects both 'OEM' and 'Compatible' against 'Product Class of Cartridge' or alternatively chooses 'any value' against 'Product Class of Cartridge', then the L-1 comparison buying method shall be available subject to other standard prerequisites. The L-1 comparison buying method for Product Class – only 'Compatible' is possible subject to other standard prerequisites.
16. For procurement through bidding involving a specific brand of Compatible Cartridges, PAC procurement may be undertaken only after following the prescribed due process. GeM, however, does not prescribe PAC procurement on its own, and the decision to follow the PAC mode of procurement is the buyer's call.
17. Single Tender procurement without PAC is permissible only where the buying organisation permits such procurement under specific circumstances and where GeM has enabled the Single Tender functionality for that organisation. GeM, however, does not prescribe the Single Tender mode of procurement on its own, and the decision to follow the Single Tender mode of procurement is the buyer's call.
18. By procuring items under this category, buyers confirm that they have understood the above clauses and agree to them. Any query with regard to the above clauses should be made prior to the procurement or floating of the bid. GeM shall not entertain any bid- or contract-specific query.
19. By uploading catalogues under this category, sellers confirm that they have understood the above clauses and agree to them. Any query with regard to the above clauses should be made prior to uploading a catalogue or participating in a bid. GeM shall not entertain any bid- or contract-specific query.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Manufacturer Authorization: Wherever Authorised Distributors/service providers are submitting the bid, Authorisation Form /Certificate with OEM/Original Service Provider details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid

3. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. OEM

IMPORTED PRODUCTS: In case of imported products, OEM or Authorized Seller of OEM should have a registered office in India to provide after sales service support in India. The certificate to this effect should be submitted.

5. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

6. **Certificates**

ISO 9001: The bidder or the OEM of the offered products must have ISO 9001 certification.

7. **Certificates**

The bidder is required to upload, along with the bid, all relevant certificates such as BIS licence, type test certificate, approval certificates and other certificates as prescribed in the Product Specification given in the bid document.

8. **Service & Support**

Availability of Service Centres: Bidder/OEM must have a Functional Service Centre in the State of each Consignee's Location in case of carry-in warranty. (Not applicable in case of goods having on-site warranty). If service center is not already there at the time of bidding, successful bidder / OEM shall have to establish one within 30 days of award of contract. Payment shall be released only after submission of documentary evidence of having Functional Service Centre.

9. **Service & Support**

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.

12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---